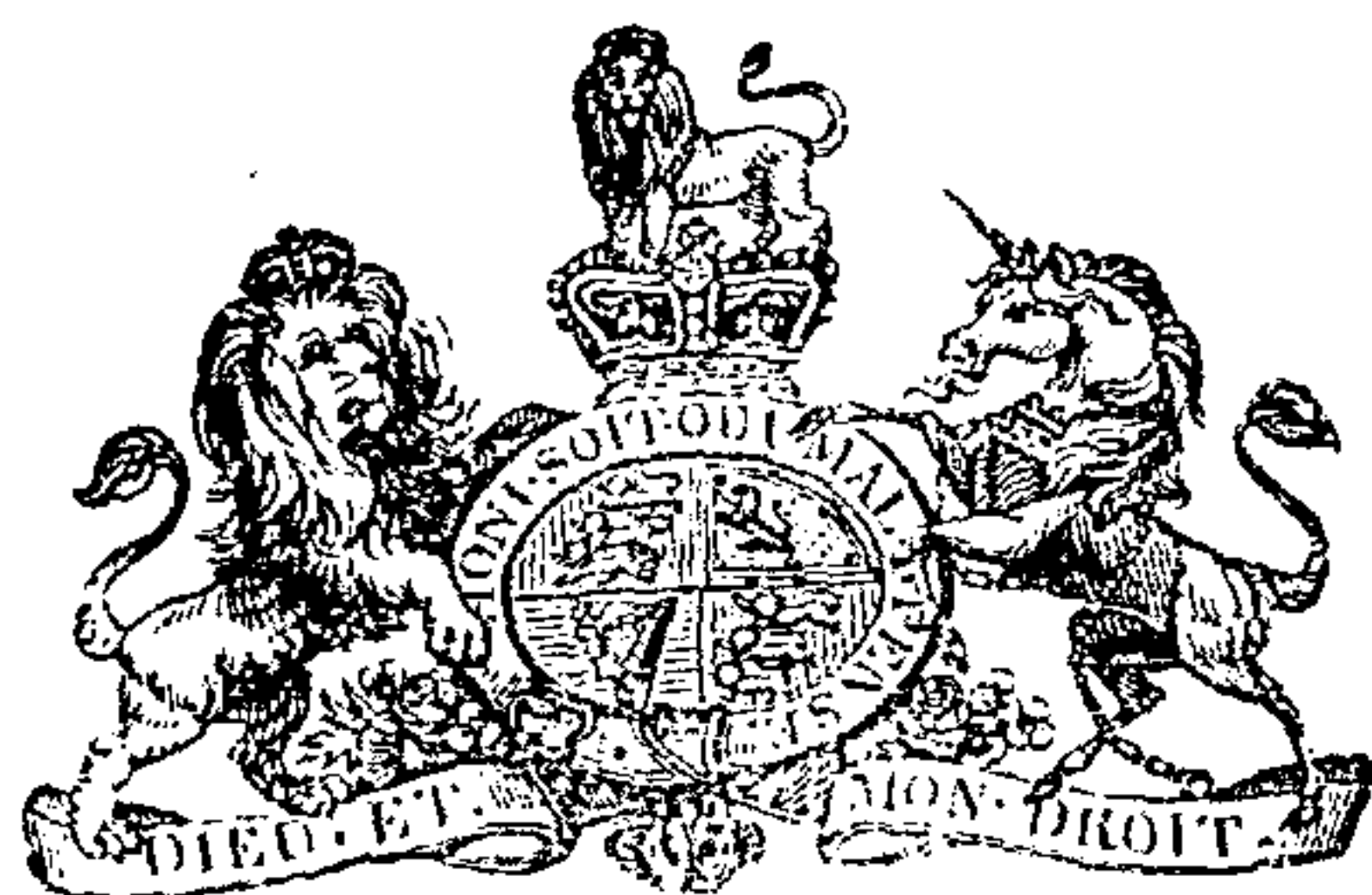


**CHAPTER ccxliv.**

An Act to confer powers upon the Corporation of the borough of Smethwick with respect to tramways and to their electric lighting and other undertakings to make further provision for the improvement and good government of the borough and for other purposes.

A.D. 1901.

[9th August 1901.]

WHEREAS the borough of Smethwick in the county of Stafford (herein-after referred to as "the borough") is under the management and local government of the mayor aldermen and burgesses of the borough of Smethwick (herein-after called "the Corporation"):

And whereas tramways have been constructed in the borough in pursuance of powers conferred by the Birmingham and Western Districts Tramways Order 1881 confirmed by the Tramways Orders Confirmation (No. 2) Act 1881 (which Order is herein-after referred to as "the Tramway Order"):

And whereas by section 43 of the Tramways Act 1870 which is incorporated with the Tramway Order the Corporation are empowered within six months after the expiration of the period of twenty-one years from the confirmation of the Tramway Order to purchase with the approval of the Board of Trade so much of the tramways thereby authorised as is within the borough:

And whereas it is expedient to empower the Corporation to work such tramways and that further provision be made in regard to the reconstruction thereof:

And whereas the supply of gas for public and private purposes within the borough is vested in the Corporation:

And whereas it is expedient that the Corporation be authorised to borrow further sums of money for the purposes of their gas undertaking and for other the purposes of this Act:

A.D. 1901.

And whereas an estimate has been prepared by the Corporation of the sum required for gasworks purposes and such estimate is as follows :--

	£
For railway sidings bridge and accessories - -	12,400
For gas holder tank and accessories - -	20,000
For retort house and retorts and purifying plant -	27,600
For mains - - - - -	13,000
For engines boilers and machinery - -	4,350
For meter house and meters - - - -	11,800
Total - - - - -	<u>£89,150</u>

And whereas the works included in such estimate are permanent works within the meaning of section 234 of the Public Health Act 1875 :

And whereas it is expedient that a fund be established for the encouragement of thrift among certain of the officers and servants of the Corporation and that the Corporation be empowered to subscribe or contribute to such fund and that other provisions should be made in reference thereto :

And whereas the Corporation are the undertakers for supplying electrical power and energy within the borough and it is expedient to authorise the use of electrical power on the said tramways when acquired by the Corporation and to execute such works in and about the said tramways as may be necessary for the use thereon of electrical power and to make further provision in regard to their electric lighting undertaking :

And whereas it is expedient that the Corporation and such other local authorities as are herein-after mentioned should be authorised to enter into agreements as to the supply of electricity and that further powers should be conferred upon the Corporation with reference to electricity as are herein-after contained :

And whereas it is expedient that better provisions should be made with reference to streets buildings sewers and recreation grounds within the borough and that the powers of the Corporation in relation to the health local government and improvement of the borough should be enlarged :

And whereas an absolute majority of the whole number of the council at a meeting held on the eighteenth day of December one thousand nine hundred after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Birmingham Daily Post a local newspaper circulating in the borough such notice being in addition to the ordinary notices

required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund : A.D. 1901.

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the fourth day of February one thousand nine hundred and one being not less than fourteen days after the deposit of the Bill for this Act in Parliament :

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Smethwick Corporation Act* Short title. 1901.

2. This Act is divided into Parts as follows :—

- Part I.—Preliminary.
- Part II.—Tramways.
- Part III.—As to electricity.
- Part IV.—Streets and buildings.
- Part V.—Sanitary.
- Part VI.—Milk supply.
- Part VII.—Infectious diseases.
- Part VIII.—Common lodging-houses.
- Part IX.—Police provisions.
- Part X.—Recreation grounds.
- Part XI.—Advertisements.
- Part XII.—Thrift fund.
- Part XIII.—Miscellaneous.
- Part XIV.—Finance.

Division of
Act into
Parts.

A.D. 1901.

Incorporation of Acts.

3. The following Acts and parts of Acts so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act namely:—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870.

Interpretation.

4. In this Act the several words and expressions to which meanings are assigned in the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of Smethwick;

“The borough” means the borough of Smethwick;

“The council” means the council of the borough;

“The town clerk” “the treasurer” “the surveyor” “the medical officer” and “the inspector of nuisances” mean respectively the town clerk the treasurer the surveyor the medical officer and the inspector of nuisances of the borough;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund borough rate district fund and general district rate of the borough;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock corporation stock or other security authorised by or under any Act of Parliament passed or to be passed of any municipal corporation in Great Britain (except the Corporation) or of any other local authority as defined by section 34 of the Local Loans Act 1875 and except annuities rentcharges and securities transferable by delivery;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating

or continuing payment of or in respect of any annuity rent-charge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“The revenues of the Corporation” includes the revenues of the Corporation arising from any land undertakings or other property for the time being of the Corporation and rates leviable by or on the order or precept of the Corporation;

“The Corporation tramways” means the tramways for the time being belonging or leased to the Corporation;

“Mechanical power” includes steam electric and every other motive power not being animal power;

“Engine” includes motor;

“Waste-water closet” means closet accommodation on the water carriage system flushed with slops or waste liquids of the household or rain water and constructed in accordance with byelaws made by the Corporation in pursuance of this Act;

“Sky sign” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support The expression “sky sign” shall also include any balloon parachute or similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house building structure or erection of any kind or on or over any street or public way but shall not be deemed to include—

- (1) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purposes of any advertisement or announcement;

A.D. 1901.

(2) Any sign on any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building on the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported ;

(3) Any such word letter model sign device or representation as aforesaid which relates exclusively to the business of a railway company and which is placed or may be placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and which is also so placed that it could not fall into any street or public place ;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough ;

“Dairy” means any farm farmhouse cowshed milk store milk shop or other place from which milk is supplied or in which milk is kept for purposes of sale ;

“Dairyman” means any cowkeeper purveyor of milk or occupier of a dairy ;

“Medical officer” shall include any person duly authorised to act temporarily as medical officer of health ;

“Daily penalty” means a penalty for each day on which any offence is continued after conviction therefor.

Unless the subject or context otherwise requires the words and expressions to which meanings are assigned by the Public Health Act 1875 and the Public Health Acts Amendment Act 1890 have in this Act the same respective meanings.

PART II.

TRAMWAYS.

Power to
work tram-
ways.

5. Notwithstanding anything in the Tramways Act 1870 or in any other Act or Order to the contrary the Corporation if and when they acquire the tramways in the borough may place and run carriages on and may work any tramways which for the time being belong to or are in lease to the Corporation or over which they may

have running powers and may demand and take tolls and charges in respect of such tramways and of the use of carriages and the Corporation may provide such stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the tramways by animal or mechanical power. A.D. 1901.

6. The power conferred on the Corporation by the Tramways Act 1870 to purchase tramways within the borough is hereby extended so as to authorise the Corporation by agreement to purchase any authorised tramways outside the borough which form continuations of authorised tramways at any time existing within the borough or which can be worked in connexion therewith. Power to purchase tramways outside borough.

7. The Corporation on the one hand and any owning authority on the other hand may subject to the provisions of this Act enter into agreements with respect to the following purposes or any of them and all matters incidental or necessary thereto (that is to say):— Working agreements.

- (1) The working running over use management occupation and maintenance by any of the contracting parties of the undertakings and tramways of or leased to the other or others of them or any part or parts thereof respectively ;
- (2) The working and leasing of their respective tramways or any part thereof and the conveyance of traffic thereon ;
- (3) The supply under and during the continuance of any agreement for the undertakings and tramways of the contracting parties or any of them being worked by the other or others of them of carriages engines and horses necessary for the purposes of any such agreement and the employment of officers and servants ;
- (4) The interchange of traffic between the undertakings of or leased to the contracting parties or any of them ;
- (5) The payment collection and apportionment of tolls rents or other receipts arising upon the respective tramways ;
- (6) The appointment of joint committees for the carrying into effect of such agreements :

And for the purposes of and during the continuance of any such agreement the Corporation or the owning authority working or running over managing or occupying any tramways shall in accordance with and to the extent provided by such agreement have and may exercise in respect of the tramways worked run over used managed occupied or maintained by them all such and the like

A.D. 1901. — powers rights and remedies for the taking collection and recovery of tolls fares and charges and otherwise howsoever as are by or under the Acts respectively relating to such tramways conferred upon the Corporation or authority owning or leasing the same.

For protection of Handsworth Urban District Council.

8. The following provisions shall have effect for the protection of the urban district council of Handsworth (in this section referred to as "the council") :—

- (1) None of the powers conferred by this Act shall be exercised within the district of the council or in relation to any tramways or works situate within that district or proposed to be constructed therein without the consent of the council in writing under their common seal :
- (2) The council are hereby empowered from time to time to give such consents upon and subject to such terms and conditions as they may think fit and the withholding or refusing of any consent or the giving thereof on any terms or conditions shall not create or be deemed to be a matter in difference within the meaning of section 33 of the Tramways Act 1870 :
- (3) Nothing in this Act contained nor anything done in exercise of any power conferred by this Act shall lessen take away interfere with or prejudicially affect the rights and powers of the council in regard to any tramways or works within their district or which may be proposed to be constructed or be hereafter constructed therein.

Restriction on exercise of powers in certain districts.

9. The Corporation shall not exercise any of the powers conferred upon them by the sections of this Act whereof the respective marginal notes are "Power to purchase tramways outside borough" and "Working agreements" in the district of any other local authority except with the consent of such authority.

Purchase of tramways outside borough by local authorities.

10. The provisions of section 43 of the Tramways Act 1870 shall apply to any tramways outside the borough which may be purchased by the Corporation under the powers of this Act.

Corporation not to interfere with existing tramways until acquired.

11. Notwithstanding anything contained in this Act the Corporation shall not interfere with any of the tramways constructed under the Tramway Order until the same shall have been acquired by the Corporation except with the consent of the owners thereof and from and after the acquisition of any such tramways the provisions of the Tramway Order except such as are of a protective nature shall cease to apply thereto.

12. Subject to the provisions of this Act it shall be lawful for the Corporation to make and maintain such openings and works in over or under the surface of any street or road as may be necessary or convenient for working any tramway purchased leased or acquired by them by mechanical power and for providing access to or forming connexions with any generating station buildings works engines machinery or apparatus.

A.D. 1901.

Power to make and maintain openings and works.

13. The Corporation may demand and take for every passenger travelling upon the Corporation tramways or any part or parts thereof including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile (and for this purpose the fraction of a mile beyond an integral number of miles shall be deemed a mile) but in no case shall the Corporation be bound to charge a less sum than twopence.

Rates for passengers.

14. Every passenger travelling upon the Corporation tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof Provided that such luggage remain under the personal charge of the passenger and be of a description not to annoy or inconvenience other passengers.

Passengers' luggage.

15. The Corporation may demand and take in respect of animals goods and parcels conveyed by them on the Corporation tramways including every expense incidental to the conveyance any rates or charges not exceeding those specified in the schedule to this Act subject to the regulations in that behalf therein contained.

Rates for goods.

16. The Corporation shall not be bound unless they think fit to carry on the Corporation tramways any goods animals or other things other than passengers and passengers' luggage under and subject to the foregoing provisions of this Act.

Corporation not bound to carry animals and goods.

17.—(1) The Corporation at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Corporation in lieu of running such carriages after five o'clock in the evening shall run the same at such hours

Cheap fares for labouring classes.

A.D. 1901. — between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Corporation to provide such service as may appear to the Board to be reasonable.

(3) The Corporation shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

As to fares
on Sundays
or holidays.

18. The Corporation shall not take or demand on Sunday or any public holiday any higher tolls or charges than those levied by them on ordinary week days.

Amendment
of Tram-
ways Act
1870 as to
byelaws by
local autho-
rity.

19. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the Corporation to make any byelaws sanctioning a higher rate of speed than that authorised by this Act or by the Board of Trade regulations at which carriages are to be driven or propelled on the Corporation tramways under the authority of this Act but the byelaws of the Corporation may restrict the rate of speed to a lower rate than that so authorised.

Motive
power.

20. The carriages used on the Corporation tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say) :—

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :

(2) The Board of Trade shall make regulations (in this Act referred to as “the Board of Trade regulations”) for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and for regulating the use of electrical power :

(3) The Corporation or any person using any mechanical power on the tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :

(4) The Board of Trade if they are of opinion—

(a) That the Corporation or such person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(b) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public;

may by order either direct the Corporation or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Corporation or such person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

21. The Corporation may reconstruct any tramways purchased leased or acquired by them upon a gauge of three feet six inches or upon such other gauge as the Board of Trade may sanction and make such alterations thereof as may be necessary or expedient for working the same by mechanical power and for the purpose of working any of the Corporation tramways by mechanical power the Corporation may place construct erect lay down make and maintain on above or below the surface of any street or road posts brackets electric conductors wires apparatus conduits cables tubes and openings and may with the consent of the owners and occupiers of any houses or buildings affix to such houses or buildings and maintain posts brackets electric conductors wires and apparatus and may supply electrical energy from any generating station constructed under powers conferred or to be conferred upon the Corporation. Provided that in reconstructing or altering any tramway under this section where a less space than nine feet six inches will intervene between the outside of the footpath on either side of the road and the nearest rail of the tramway the Corporation shall not place such rail nearer to the footpath than it is at present.

Reconstruction of tramways and construction of electric works.

22. So much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on tramways beyond the outer edge of the wheels of such carriages shall not apply to engines or carriages used on the tramways which belong to or are in lease to the Corporation or over which they may have running powers. Provided that no carriage or engine used on such tramways shall exceed in width six feet or such other width as the Board of Trade may sanction.

As to overhang of tramway cars.

A.D. 1901.

Special provisions as to use of electrical power.

23. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages :—

- (1) The Corporation shall employ insulated returns or uninsulated metallic returns of low resistance :
- (2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use

of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents: A.D. 1901.

(6) If any difference arises between the Corporation and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be:

(7) The expression "Corporation" in this section shall include lessees licencees and any person owning working or running carriages over any of the Corporation tramways.

24.—(1) Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alterations. • For protection of Postmaster-General.

(2) In the event of any of the Corporation tramways being worked by electricity the following provisions shall have effect:—

(a) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. If any question arises as to whether the Corporation have constructed their electric lines or other works or work their undertaking in contravention of this subsection such question shall be determined by arbitration and the Corporation shall be bound to make any alterations in or additions to their system which may be directed by the arbitrator:

(b) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:

A.D. 1901.

(c)—(i) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs or the laying of lines crossing the line of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet on each side of such point) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work;

(ii) Any difference which arises between the Postmaster-General and the Corporation or their agents with respect to any requirements so made shall be determined by arbitration:

(d) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues:

(e) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of the act or execution of the work was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice:

(f) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work:

- (g) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act:
- (h) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882:
- (i) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act:
- (j) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid:
- (k) In this section the expression "the Corporation" includes their lessees and any person owning working or running carriages on any of the Corporation tramways.

25. All works to be executed by the Corporation in any street or road for working the Corporation tramways by mechanical power in pursuance of the powers of this Act shall be deemed to be works of a tramway subject in all respects to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned.

Mechanical power works to be subject to section 30 of Tramways Act 1870.

26.—(1) Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the Corporation tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages;

For regulating the emission of smoke or steam from engines used on the tramways;

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety;

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages;

A.D. 1901.

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

(2) Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

Orders &c. of Board of Trade.

27. All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

Power to acquire patent rights.

28. For the purpose of using mechanical power the Corporation may acquire hold and exercise patent and other rights or licences relating to motive power or otherwise but not so as to acquire any exclusive right therein.

Temporary use of omnibuses.

29. In the event of blocking of the Corporation tramways by snow or otherwise or the interruption of traffic thereon by accident or other casualty or by construction alteration or repair thereof the Corporation may provide and run omnibuses on any tramway route so blocked or on which the traffic is interrupted and demand and take tolls and fares for the use of such omnibuses.

Application of Conveyance of Mails Act 1893.

30. The Conveyance of Mails Act 1893 shall extend and apply to all the Corporation tramways as if the same had been authorised by an Act of Parliament passed after the first day of January one thousand eight hundred and ninety-three.

For protection of London and North Western Railway Company.

31. In reconstructing or altering any tramways or in executing any works in connexion therewith for adapting the same to be worked by mechanical power or in making and maintaining in on over or under the surface of any street road or place such openings and works as may be necessary or convenient for working the tramways by mechanical power where any such tramways cross any railway bridge carrying any road over any railway of the London and North Western Railway Company (herein-after referred to as "the North Western Company") the following provisions shall be in force and have effect:—

(1) The Corporation or the owning authority as the case may be shall not without the consent in writing of the North Western Company in any way alter or interfere with the structure of any such bridge or of the approaches thereto and they shall so reconstruct or alter the tramways and execute and maintain the works necessary or expedient for adapting the same to be

worked and make and maintain the works necessary or convenient for working the same by mechanical power over such bridge and the approaches thereto as not injuriously to affect the same :

- (2) In the event of any injury being caused to any such bridge or approaches by the reconstruction or alteration of the tramways or the execution making or maintaining of the works necessary expedient or convenient for adapting the same to be worked and for working the same by mechanical power the North Western Company may at the expense of the Corporation or the owning authority as the case may be restore such bridge and approaches or the part or parts thereof which may be so injured to as good a state and condition as they were in before such injury was occasioned :
- (3) Whenever and so often as the North Western Company shall require to widen lengthen strengthen reconstruct alter or repair any such bridge or approaches or to lift or support any such bridge or approaches owing to the subsidence thereof caused by the minerals thereunder having been worked or gotten and they shall find it necessary for effecting any of such purposes that the working and user of the tramways over such bridge or approaches shall be wholly or partially stopped or delayed or that such tramways shall be temporarily diverted or be wholly or in part taken up or removed and shall except in cases of emergency give to the Corporation or the owning authority as the case may be seven clear days' notice in writing requiring such stoppage delay or diversion taking up or removal the working and user of such tramways shall be diverted taken up or removed accordingly at the reasonable expense of the Corporation or the owning authority and under the superintendence of their engineer if such engineer gives such superintendence but only for so long as the North Western Company may find to be absolutely necessary for effecting such purpose and without their being liable for any compensation claims demands damages costs or expenses for or in respect of such stoppage or delay or in any way relating thereto :
- (4) In case the principal engineer of the North Western Company shall be of opinion and in case of difference in the opinion of an engineer to be appointed as herein-after mentioned that any strengthening reconstructing altering repairing lifting or supporting of any such bridge or approaches is necessary owing to the carriages or vehicles on such tramways being or being intended to be moved by mechanical power the same

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shall be effected in all things at the expense of the Corporation or the owning authority as the case may be who shall also pay to the North Western Company all additional expense which they may incur or be put to in effecting any such strengthening reconstructing alterations repairs lifting or supporting by reason of the existence of the tramways so passing or any of the works connected therewith:

- (5) All works which may be necessary in reconstructing or altering the tramways or in executing making or maintaining the works necessary expedient or convenient for adapting the same to be worked or for working the same by mechanical power over any bridge or works of the North Western Company shall be carried out and maintained in all things at the expense of the Corporation or the owning authority as the case may be and to the reasonable satisfaction of the principal engineer of the North Western Company or in case of difference of an engineer to be appointed by the Board of Trade on the application of the North Western Company or the Corporation or owning authority.

PART III.

AS TO ELECTRICITY.

Supply of
electricity for
tramway
purposes.

32. The Corporation on the one hand and any local authority company or person owning working or about to own or work any tramways within and beyond the borough on the other hand may enter into and carry into effect agreements for the supply by the Corporation of electrical energy for the working of such tramways and for the purposes of carrying any such agreement into effect the Corporation may construct such works as may be necessary and the provisions of the Smethwick Electric Lighting Order 1898 (herein-after referred to as "the Order of 1898") shall so far as they are applicable apply to the construction of such works Provided that no energy shall be supplied or shall continue to be supplied by the Corporation under the provisions of this section in any district in which any local authority company or person shall be supplying energy under statutory authority without the consent in writing of such local authority company or person.

Byelaws
with respect
to electric
fittings.

33.—(1) Any wires apparatus and fittings in any building or premises supplied with electrical energy by the Corporation shall be subject to such byelaws for securing the safety of the inhabitants and for the prevention of fire as the Corporation may reasonably require.

(2) The provisions with respect to byelaws to be made by a local authority contained in the Electric Lighting Act 1882 shall apply to byelaws made by the Corporation under this section. A.D. 1901.

34. The Corporation may provide sell let for hire and fix set up alter repair and remove within the borough but shall not manufacture lamps meters electric lines fittings apparatus and things for lighting and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy and may provide all materials and do all works necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps meters electric lines fittings apparatus and things as aforesaid and for securing their safety and return to the Corporation as the Corporation may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed. Power to supply electric fittings.

35. The Corporation may if they think fit make an allowance by way of discount not exceeding the rate of five per centum on the amount due in respect of any charges for electrical energy supplied by them from every person who pays the same within such time after demand thereof as the Corporation think fit to prescribe in that behalf and notice to this effect shall be contained in every demand note in respect of such charges Provided that in making such allowance the Corporation shall not show any undue preference to any consumer. Discount on electrical charges &c.

36. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Corporation shall after the passing of this Act be filled up on or before the twenty-fourth day of June in every year and shall be made up to the thirty-first day of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the electric lighting undertaking of the Corporation as if the twenty-fourth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December. Altering date for filling up annual accounts for electric lighting.

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PART IV.

STREETS AND BUILDINGS.

Approval of
plan to be
void after
certain
interval.

37. The approval by the Corporation of any plan or section of any street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say):—

As to plans deposited after the passing of this Act within two years from the date of such deposit;

As to plans deposited before the passing of this Act within two years from the passing of this Act:

And at the expiration of those respective periods fresh notice and deposit shall unless the Corporation otherwise determine be requisite.

The Corporation shall give notice of the provisions of this section to every person intending to lay out any new street or to erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or the erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

Retention of
plans de-
posited with
Corpora-
tion.

38. The Corporation may retain any drawings plans sections specifications and written particulars descriptions or details deposited with them in pursuance of any enactment for the time being in force in the borough or any byelaw thereunder.

Power to
vary position
or direction
of new
streets.

39. When any plans or sections of any new street are submitted to the Corporation for approval the Corporation may by order vary or alter the position direction or level of any intended new street for the purpose of causing it to communicate in a direct or more direct line with any other street adjoining or leading thereto The Corporation shall make compensation to any person who may be injuriously affected by the exercise of the powers conferred by this section.

Corporation
may define
future line of
streets.

40.—(1) Where any street in the borough for the time being repairable by the inhabitants at large is in the opinion of the Corporation narrow or inconvenient or without any sufficiently regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Corporation may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of any such street The line which in any case the Corporation propose so to

prescribe and define shall be distinctly marked and shown on a plan to be signed by the town clerk and deposited with the borough surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Corporation formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain. No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street than such line : A.D. 1901.

Provided that nothing in this section shall apply to the construction of any cornice or of oriel windows and balconies to any storey above the ground floor storey if the same are constructed in accordance with the byelaws relating to the construction of new buildings.

(2) The Corporation may and if required so to do by the owner shall purchase the land lying between any such line as aforesaid and the centre of the street and the same when purchased shall vest in the Corporation as part of the street.

(3) Whenever in any of the above cases the Corporation shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land or building for any loss or damage they may sustain in consequence of the line of frontage being set back and the Corporation shall also make to the owner of any adjoining land or building and to all other persons interested in any such land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them by reason of the Corporation requiring the said line to be observed and kept.

(4) If after any such line shall be so defined and prescribed as aforesaid any person shall wilfully or negligently act contrary to this enactment he shall for every such offence be liable to a penalty not exceeding five pounds and to a daily penalty of the like amount.

(5) In estimating the amount of compensation or purchase money to be paid by the Corporation under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street shall be fairly estimated and shall be set off against the said compensation or purchase money.

41.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Corporation for permission so to do and such application shall be accompanied by a plan and section of the proposed building drawn to a scale of not less than As to temporary and movable buildings.

A.D. 1901. — one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Corporation shall within twenty-one days after the delivery of the plan section and specification signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Corporation may attach to their approval any condition which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such building is commenced erected or set up without such application accompanied by such plan section and specification or after the disapproval of the Corporation or before the expiration of the said twenty-one days without such approval or is in any respect not in conformity with any condition attached by the Corporation to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Corporation or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty of the like amount and the Corporation may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section :—

(A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the borough with respect to new buildings and any tent not remaining for more than seven days ;

(B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or

removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion; A.D. 1901.

- (c) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light; and
- (d) Structures or erections erected or set up upon the premises of any railway company and used for the purposes of or in connexion with the traffic of any railway company.

42. Where a temporary or other building referred to in the last preceding section is taken down or removed by the Corporation under the powers of this Part of this Act the Corporation may sell the materials thereof or any part of them and shall apply the proceeds of the sale or any part thereof either in or towards payment of the costs and expenses incurred by them in relation to such building or shall pay the same or any part thereof to the owner of such structure as a court of summary jurisdiction shall determine. Power to sell materials of temporary buildings.

43. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall with respect to the borough extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Corporation may determine to be dangerous or an obstruction to the safe or convenient use of any street. Prevention and removal of projections over streets.

44. If any yard or open space in connexion with any dwelling house erected before the passing of this Act shall not be so formed flagged asphalted or paved as to allow of the surface water being carried off to the drains of such house the Corporation may give to the owner of such house notice in writing requiring him within fourteen days after such notice shall have been so given to proceed to form and to flag asphalt or pave such yard or open space for at least two hundred square feet where practicable immediately adjoining such house so as to allow of the surface water being carried off to the drains of such house and within twenty-eight days after such notice shall have been so given to complete such several works to the satisfaction of the Corporation and if such owner shall make default in complying with any of such requirements to the satisfaction of the Corporation within the respective times aforesaid the Corporation may if they think fit execute the works necessary for carrying out such requirements and the expenses incurred by them in so doing shall be paid to the Corporation by such owner and shall be recoverable summarily. Yards to be paved.

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Entrances to courts not to be closed.

45. The entrance to any court or similar place not being a highway repairable by the Corporation shall not at any time after the passing of this Act be closed or narrowed or built over or the height or headway thereof lowered.

Restriction on erection of any building in certain courts.

46.—(1) No dwelling-house shall except with the consent of the Corporation be erected in any court on any land on which a dwelling-house was not standing at the commencement of this Act:

Provided that if the Corporation shall under the provisions of this subsection require any such land upon which a new building could be erected in compliance with the byelaws of the Corporation for the time being in force in the borough to remain vacant or unbuilt upon the Corporation shall make compensation to the owner of such land for any loss or damage sustained by him in consequence of not being allowed to erect a new building upon such land.

(2) When in any court any building is burnt or pulled down to or below half the front thereof such building shall if required by the Corporation be entirely pulled down and removed and shall not be rebuilt. Provided that the Corporation shall make compensation to the owner of such building land for any loss or damage sustained by him in consequence of the building being so pulled down removed and not rebuilt.

(3) Nothing in this section shall be deemed to affect any other powers of the Corporation with respect to buildings in courts.

Corporation may require old drains to be laid open for examination by surveyor before communicating with sewers.

47. Before any drain existing at the time of the passing of this Act and then not communicating with any sewer of the Corporation shall be made to communicate with any sewer of the Corporation the Corporation may require the same to be laid open for examination by the borough surveyor and no such communication shall be made until the borough surveyor shall certify that such drain may be properly made to communicate with such sewer and the borough surveyor shall cause the ground to be closed and any damage done to be made good as soon as can be and the expense of such examination shall be defrayed by the Corporation.

For preventing soil and sand from being washed into streets.

48. The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon or adjoining any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully and any person who shall offend against this section shall be liable to a

penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1901.

For the purpose of this section "public street" means a street repairable by the inhabitants at large and "private street" means a street not so repairable.

Provided that this section shall not apply to any lands of a bona fide agricultural character.

49. All buildings or parts of buildings which may in future be erected on the site of any building or any land which site or land in consequence of any improvement made by the Corporation becomes front land shall be erected according to such elevation as the Corporation approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a plan approved by the Corporation and in case the Corporation for the space of one month after any plan or drawing of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof The Corporation shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence.

Elevation of buildings erected on front land to be subject to approval of Corporation.

50. No person shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street or such part of such length as may be required by the Corporation shall have been defined by posts or in some other sufficient manner to the satisfaction of the Corporation to indicate the approved line and level thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

No buildings allowed until street defined.

51. Every person desirous of forming a communication for horses cattle or vehicles across any footway so as to afford access to any premises from a street repairable by the inhabitants at large shall first give notice in writing of such desire to the Corporation and shall if so required by them submit to them for their approval a plan of the proposed communication showing where it will cut the footway and what provision (if any) is made for kerbing for gullies

Crossings for horses or vehicles &c. over footways.

A.D. 1901. and for a paved crossing and the dimensions and gradients of the necessary works and shall execute the works at his own expense under the supervision and to the reasonable satisfaction of the borough surveyor and in case such plan shall have been required then in accordance with the plan so approved and not otherwise.

If any person drives or permits or causes to be driven any horse cattle or vehicle across any footway before such a communication has been made or on or along any part of any such footway other than the part over which such communication has been made he shall for each such offence be liable to a penalty not exceeding forty shillings in addition to the amount of damage (if any) thereby occasioned.

Dangerous places to be repaired or inclosed.

52. With respect to the repairing or inclosing of dangerous places the following provisions shall have effect (namely):—

- (1) If any building wall steps structure or other thing or any well excavation or reservoir pond stream or dam or bank or any land or place is in the opinion of the Corporation for want of sufficient repair protection or inclosure dangerous to the passengers along any street or footpath the Corporation may order the owner within the period specified in such order to repair protect or inclose the same so as to prevent any danger therefrom:
- (2) If after service of the order on the owner he shall neglect to comply with the requirements thereof within the prescribed period the Corporation may cause such works as they think proper to be done for effecting such repair removal protection or inclosure and the expenses thereof shall be payable by the owner and may be recovered summarily unless the court of summary jurisdiction or the court of quarter sessions on appeal shall be of opinion under the circumstances of the case that such expenses should be borne by the Corporation:
- (3) Nothing in section 75 of the Towns Improvement Clauses Act 1847 shall render it incumbent upon the borough surveyor to cause a hoard or fence to be put up in the case of a dangerous chimney.

Corporation may declare where streets begin and end.

Trees or shrubs overhanging streets.

53. The Corporation may by order declare the limits at or within which any street is to be taken as beginning or ending.

54. Where any tree hedge or shrub overhangs any public street so as to obstruct or interfere with the light from any public lamp or to interfere with the free passage of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge

or shrub is growing requiring him to lop the tree hedge or shrub so as to prevent such obstruction or interference and in default of compliance with the notice may themselves carry out its requisitions doing no unnecessary damage. A.D. 1901.

55. It shall not be lawful for any person without the consent of the Corporation first obtained which consent shall not be unreasonably withheld to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Corporation and if any person fails to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding forty shillings and the Corporation may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily.

Restrictions on deposit of building materials and excavations.

56. From and after the commencement of this Act—

The re-conversion into a dwelling-house of any building which has been discontinued as and appropriated for any purpose other than that of a dwelling-house ;

The conversion of a dwelling-house into any other building not intended for human habitation ;

The making of any addition to an existing building by raising any part of the roof or making any projection therefrom but (provided such addition shall not increase the number of storeys) so far as regards such addition only ; and

The roofing or covering over of an open space between walls or buildings ;

shall for all the purposes of this Act and the Public Health Acts and of any byelaws made thereunder respectively be deemed to be the erection of a new building.

57. Nothing in this Part of this Act or in any byelaws to be made thereunder shall apply to any buildings (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connexion with their railway.

Exemption of buildings of railway companies.

A.D. 1901.

As to urgent
repairs to
private
streets.

58. In cases where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs danger exists to passengers or vehicles in such street the Corporation may give notice in writing to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute within a time to be specified in such notice such repairs in and upon such street as shall be specified in such notice and if such notice is not complied with the Corporation may if they think fit execute such repairs and the expenses thereof shall be recoverable summarily as a civil debt or in any court of competent jurisdiction from the owners in default Provided that no railway or canal company shall be deemed to be an owner for the purposes of this section in respect of any land of such company upon which any street shall wholly or partially front or abut and which shall at the time when such notice is given be used by such company solely as a part of their line of railway canal or siding station towing-path or works and shall have no direct communication with such street.

In executing
works for
owner Cor-
poration not
liable for
damage.

59. Whenever the Corporation under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Corporation or of any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be added to and be deemed to be part of the expenses payable by such owner or occupier.

Penalty on
occupiers
refusing
execution of
Act.

60.—(1) In case the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under this Act or under any byelaw made under the powers of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding five pounds and during the continuance of such refusal the owner

shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works. A.D. 1901.

(2) If the occupier of any premises when requested by or on behalf of the Corporation to state the name of the owner of the premises occupied by him shall refuse or wilfully omit to disclose or wilfully misstate the same he shall (unless he shall show a cause to the satisfaction of the court for his refusal) be liable to a penalty not exceeding five pounds.

61. The Corporation may on the application of the owner or occupier of any premises within the statutory limits of the Corporation for the supply of gas abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply. Power to lay gas pipes in streets not dedicated to public use.

PART V.

SANITARY.

62. If it appear to the Corporation that two or more houses plans for which are approved after the passing of this Act may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Corporation may when such drains are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners or occupiers of such houses in such manner as the Corporation shall determine and if constructed by the Corporation may be recovered as a civil debt by the Corporation from such owners or occupiers summarily. Corporation may order houses &c. to be drained by a combined operation.

63.—(1) From and after the passing of this Act the Corporation may by resolution declare that any sewer or sewers for the time being belonging to them shall be appropriated and used for sewage (in this Act called a sewage sewer) and they may also declare that any other sewer or sewers for the time being belonging to them shall be appropriated and used for surface water (in this Act called a surface water sewer) and after such appropriation no sewage shall be permitted to flow into a surface water sewer of Provisions as to separate system of sewerage.

A.D. 1901. the Corporation or into any drain gutter or watercourse leading thereto and no surface water shall except with the consent in writing of the Corporation be permitted to flow or pass into any sewage sewer of the Corporation.

(2) Where at the time of any such appropriation sewage from any premises shall flow or pass through any drain communicating with any surface water sewer or any surface water from any premises shall flow or pass through any drain communicating with any sewage sewer the Corporation may execute and do such works and things as may be necessary to cause such drain to communicate with the appropriate sewer.

(3) If after any such appropriation and the completion of any necessary works by the Corporation under the provisions of the preceding subsection any person shall cause or knowingly permit any sewage to flow or pass into any surface water sewer or without the consent in writing of the Corporation shall cause or knowingly permit any surface water to flow or pass into any sewage sewer the person so offending shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding twenty shillings and the Corporation may close any drain communicating with any such inappropriate sewer and may recover in a summary manner from the person offending any expense thereby incurred Provided that no penalty or expenses shall be incurred by any person in respect of communications with any sewer existing at the time of the passing of the resolution appropriating any such sewer.

Damage to drains &c. so as to cause nuisance.

64. If any person cause any drain watercloset earth closet privy ashpit or cesspool to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging or altering the course of the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds:

Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Summary power to provide sinks and drains for buildings.

65. In addition to all other powers vested in the Corporation the Corporation if it shall appear to them on the report of the surveyor or medical officer that any building whether built before or after the passing of this Act is not provided with a proper sink or drain or other necessary appliances for carrying off refuse water

from such building may give notice in writing to the owner or occupier of such building requiring him in the manner and within the time to be specified in such notice to provide such sink drain or other appliances and if such owner or occupier shall make default in complying with such requirement to the satisfaction of the Corporation within the time specified in such notice he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and in case of default the Corporation may if they think fit themselves provide such sink drain or other appliances and the expenses incurred by them in so doing shall be repaid to them by such owner or occupier and may be recovered summarily. A.D. 1901.

66.—(1) On complaint made on oath by the surveyor medical officer or the inspector of nuisances that he has reasonable grounds for believing the existence of a nuisance any justice may grant a warrant to such surveyor medical officer of health or inspector of nuisances to inspect any drain closet or cesspool or any water supply sink trap syphon pipe or other work or apparatus connected therewith and on such warrant being granted for the purpose of ascertaining the course of any such work such surveyor medical officer or inspector of nuisances at all reasonable times in the daytime after not less than twenty-four hours' notice in writing has been given to the occupier of the premises to which such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus is attached or if they are unoccupied to the owner or if such owner or occupier is not known or cannot be found left on such premises may enter and cause the ground to be opened wherever such surveyor medical officer or inspector of nuisances think fit doing as little damage as may be. Inspection of
drains &c.

(2) If any person obstruct or attempt to obstruct or incite any person to obstruct such surveyor medical officer or inspector of nuisances or assistants in the exercise of the powers conferred by this section he shall for every such offence be liable to a penalty not exceeding five pounds.

(3) If any such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus be found on inspection to be properly made in accordance with the Acts and byelaws in force within the borough and in proper order and condition the Corporation shall cause the same to be reinstated and made good as soon as may be and the expenses of examining reinstating and making good the same shall be defrayed by the Corporation and

A.D. 1901. full compensation shall be made by them for all damage or injury done or occasioned by such examination.

(4) If any such drain closet or cesspool water supply sink trap syphon pipe or other work or apparatus be found on inspection as aforesaid not to have been properly made as aforesaid or to be in bad order and condition and to require cleansing alteration amendment or to be filled up the Corporation shall cause notice to be served on the owner or occupier of the premises upon or in respect of which the inspection was made requiring him forthwith or within a reasonable time specified in the notice to do what is necessary to place the work in proper order and condition.

(5) If such notice is not complied with the said owner or occupier shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation if they think fit in lieu of proceeding for a penalty may enter on the premises and execute the work and may recover the expenses incurred by them in so doing from the person in default in a summary manner.

(6) For the purposes of this section the word "drain" includes any sewer which is not vested in the Corporation.

Reconstruction of drains to require approval of borough surveyor.

67. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Corporation except in accordance with the provisions of the byelaws and regulations relating to the drainage of new buildings.

Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding five shillings.

Owner liable for houses occupied without proper water supply.

68. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Improper construction or repair of watercloset or drain.

69. If a watercloset or drain is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he show that such construction or repair was not due to any wilful act neglect or default be liable to a fine not exceeding twenty pounds :

Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the

time appointed for hearing the charge and if he prove to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any fine and the said other person may be summarily convicted of the offence.

A.D. 1901.
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70.—(1) The Corporation may on the erection of any new building when a sewer and water supply sufficient for the purpose are reasonably available by written notice to the person by whom plans relating to the new building are deposited require that such new building shall be provided with proper and sufficient water-closets and waste-water closets or with one or more of either class of closet according as circumstances may require.

Corporation may require waterclosets or waste-water closets to new buildings.

(2) Any person offending against any requirement of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

71.—(1) If on the report of the medical officer or the borough surveyor or the inspector of nuisances the Corporation are satisfied that any house has not sufficient closet accommodation provided thereat or in connexion therewith the Corporation may when a sewer and water supply sufficient for the purpose are reasonably available by written notice to the owner require that such building shall be provided with proper and sufficient waterclosets and waste-water closets or with one or more of either class of closet according as circumstances may require. Provided that where a watercloset earth closet or privy has been and is used in common by the inmates of two or more houses or if in the opinion of the Corporation a watercloset earth closet or privy may be so used they need not require the same to be provided for each house.

If no sufficient closet accommodation Corporation may require waterclosets or waste-water closets.

(2) If the owner of any such house fail in any respect to comply with a notice of the Corporation under this section the Corporation may at the expiration of a time to be specified in the notice (not being less than fourteen days after the service of the notice) do the work specified in such notice and may recover from the owner the expenses incurred by the Corporation in so doing.

72.—(1) Where any person deems himself aggrieved by any requirements of the Corporation or disputes the reasonableness of the expenses charged to him by the Corporation under the section of this Act the marginal note whereof is "If no sufficient closet accommodation Corporation may require waterclosets or waste-water closets" such person may within fourteen days after the service of notice of the requirement or of a demand for payment

As to appeal under last preceding section.

A.D. 1901. of the expenses appeal to a court of summary jurisdiction and the court may make such order in the matter as to them may seem equitable and the order so made shall be binding and conclusive on all parties :

Provided nevertheless that the right of appeal subsequent to the service of a demand for payment shall be restricted to the ground of the reasonableness of the amount of the expenses and the appellant shall be precluded from raising at that stage any other question.

(2) Pending the decision of the court upon such appeal the Corporation shall not be empowered to execute any works included in the notice and any proceedings which may have been commenced for the recovery of such expenses shall be stayed.

Apportionment of expenses in case of joint owners.

73. Where under the provisions of this Part of this Act the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Part of this Act are recoverable by the Corporation from the owner shall be paid by the owners of such buildings in such proportions as shall be determined by the borough surveyor or in case of dispute by a court of summary jurisdiction.

Expenses may be declared private improvement expenses.

74. The Corporation may declare any expenses incurred by them under the provisions of this Part of this Act which are recoverable from the owner or owners to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of which they were incurred in accordance with the provisions of section 257 of the Public Health Act 1875.

Byelaws.

75. The Corporation may make byelaws with respect to water-closets and waste-water closets and may by means of such byelaws prescribe the description or nature size materials position and level thereof and of the apparatus and the manner of flushing the same and the means to be provided for protecting the same from frost.

Owners &c. to permit application of test to drains.

76. Whenever the surveyor or the medical officer or inspector of nuisances has reasonable grounds for believing that the drains connected with any building are defective so as to cause risk to health he may after twenty-four hours' notice and with the consent (except in the case of houses let in separate dwellings) of the owner or occupier of such building or in the event of objection by any such owner or occupier after obtaining the order of a court of summary jurisdiction apply the smoke or coloured water or other similar test as he may consider efficient to such drains for the

purpose of discovering any defects therein : Any owner or occupier who refuses notwithstanding such order to allow such test to be made or to give all reasonable facilities for making such test shall be liable to a penalty not exceeding twenty shillings. A.D. 1901.

If the drains be found defective the owner of the premises shall be bound (subject to the terms of any lease or other contract) on receiving notice from the Corporation to that effect specifying generally the nature of the defect to carry out all necessary operations for remedying the same within a reasonable time to be named in such notice and if he makes default in so doing the Corporation may enter and execute the work and recover the expenses thereof from the owner or other person liable under the lease or contract in a summary manner or where the owner is the person liable as private improvement expenses are recoverable under the Public Health Acts.

Provided that nothing in this section shall authorise the use of a test by means of water under pressure.

77. If it shall appear to the Corporation by the report of the medical officer borough surveyor or inspector of nuisances that any cesspool or other receptacle used or formerly used as a receptacle for excreta or other obnoxious matter or for the whole or any part of the drainage of a house or any ashpit or any well or disused well belonging to any such house or part of a house is prejudicial to health or otherwise objectionable for sanitary reasons and that it is desirable that the same should be filled up or removed or so altered as to remove any such objection as aforesaid the Corporation may if they think fit by notice in writing require the owner or occupier of such house or part of a house within a reasonable time to be specified in the notice to cause such cesspool receptacle ashpit or well to be filled up or removed and any drain communicating with such cesspool or receptacle to be effectually disconnected destroyed and taken away or to cause such cesspool receptacle ashpit or well to be so altered as to remove any such objection as aforesaid.

Provisions as to filling up cesspools &c.

If default is made in complying with the requisitions of a notice under this section the Corporation may themselves carry out the requisitions and may recover the expenses incurred by them in so doing from the owners or occupiers in default in a summary manner or where the owners are the persons liable as private improvement expenses are recoverable under the Public Health Acts.

78. Where any inn public house beer house eating house or other place of public entertainment built before or after the passing

Urinals to be attached to refreshment houses &c.

A.D. 1901.

of this Act has no urinal belonging or attached thereto in a convenient and suitable position the Corporation may order the owner of such inn public house beer house eating house or other place of public entertainment to provide and maintain upon the premises in a position to be specified in the order a urinal or urinals to the reasonable satisfaction of the Corporation and if any person fails to comply with any of the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Corporation may require removal or alteration of urinals &c.

79. If any urinal or closet now or hereafter erected in or opening on any street shall in the opinion of the Corporation be so placed or constructed as to be a nuisance or offensive to public decency the Corporation by notice in writing may require the owner to remove the same Any such owner who fails within a reasonable time to comply with a notice under this section shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding ten shillings.

Public conveniences and lavatories.

80. The powers of the Corporation under section 39 of the Public Health Act 1875 shall extend to authorise them to provide and maintain sanitary conveniences under any street repairable by the inhabitants at large and to provide and maintain lavatories in or under any such street for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any sanitary convenience (other than a urinal) or of any lavatory so provided and the Corporation may make byelaws for the management of such sanitary conveniences and lavatories and as to the conduct of persons frequenting the same.

Charge for emptying privies of trade rubbish.

81. If any trade refuse or any building materials or other materials or rubbish of a like description be deposited in any watercloset waste-water closet privy cesspool ashpit or ashtub the Corporation may make a reasonable charge for the removal of the same which charge shall be paid to the Corporation by the occupier of the premises in respect of which the charge is made and may be recovered summarily as a civil debt.

Water or stack pipes not to be used as ventilating shafts.

82. No water pipe or stack pipe for conveying surface water from any premises shall be used or be permitted to serve or to act as a ventilating shaft to any drain which communicates or which is intended to communicate with any sewer of the Corporation.

PART VI.

A.D. 1901.

MILK SUPPLY.

83.—(1) Every person who knowingly sells or suffers to be sold or used for human consumption within the borough the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds.

Tuberculosis and milk.
(Penalty for selling milk of diseased cows.)

(2) Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the borough who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

(Penalty on failing to isolate diseased cows.)

(3) Every dairyman who supplies milk within the borough and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is.

(Obligation to notify cases of tuberculosis.)

Any dairyman failing to give such notice as required by this subsection shall be liable to a penalty not exceeding forty shillings.

(4) — (a) It shall be lawful for the medical officer or any person provided with and if required exhibiting the authority in writing of such medical officer to take within the borough for examination samples of milk produced or sold or intended for sale within the borough.

(Power to take samples of milk.)

(b) The like powers in all respects may be exercised outside the borough by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

(5) — (a) If milk from a dairy situate within the borough is being sold or suffered to be sold or used within the borough the medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall

(Power to inspect cows and to take samples of milk.)

A.D. 1901. if he so requires be kept separate and separate samples thereof be furnished.

(b) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the borough from consumption of the milk supplied from a dairy situate within the borough or from any cow kept therein he shall report thereon to the Corporation and his report shall be accompanied by any report furnished to him by the veterinary surgeon and the Corporation may thereupon serve on the dairyman notice to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the borough until the order has been withdrawn by the Corporation.

(c) If the medical officer has reason to believe that milk from any dairy situate outside the borough from which milk is being sold or suffered to be sold or used within the borough is likely to cause tuberculosis in persons residing within the borough the powers conferred by subsection (5) of this section may in all respects be exercised in the case of such dairy provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(d) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of subsection (5) of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of subsection (5) of this section shall be liable to a penalty not exceeding five pounds.

(e) If in their opinion the dairyman fails to show cause why such an order may not be made as aforesaid the Corporation may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the borough on the council of the borough or district in which it is situate.

(f) The said order shall be forthwith withdrawn on the Corporation or their medical officer being satisfied that the milk

supply has been changed or that it is not likely to cause tuberculosis to persons residing in the borough. A.D. 1901.

(g) If any person after any such order has been made supplies any milk within the borough in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a further penalty not exceeding forty shillings for every day during which the offence continues.

(h) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under subsection (5) of this section.

(i) The dairyman may appeal against an order of the Corporation under this subsection or the refusal of the Corporation to withdraw any such order either to a petty sessional court having jurisdiction within the borough or at his option if the dairy is situate outside the borough to the Board of Agriculture who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the borough and give notice thereof to the dairyman and the town clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court.

The Board of Agriculture may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture in the matter of the appeal.

The court or the Board of Agriculture as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Corporation.

(j) If an order is made without due cause or if the Corporation unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Corporation full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Corporation to withdraw the order.

The court or the Board of Agriculture may determine and state whether an order the subject of appeal has been made without due cause and whether the Corporation have unreasonably refused

A.D. 1901. to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default (provided that any such fact has not been determined by the court or Board of Agriculture) or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

(Notice of provisions of this section of Act.)

(6) The Corporation shall cause to be given public notice of the effect of the provisions of this section by advertisement in local newspapers and by handbills and otherwise in such manner as they think sufficient and this section shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Corporation may fix.

(Procedure.)

(7) Offences under this section may be prosecuted and penalties may be recovered by the Corporation before a petty sessional court having jurisdiction in the place where the dairy is situate or the offence is committed and not otherwise.

(As to expenses.)

(8) All expenses incurred by the Corporation in carrying into execution the provisions of this section shall be chargeable upon the district fund and general district rate and the Corporation may also charge upon the same rate any expenses incurred by them in the application by a veterinary surgeon of the tuberculin or other reasonable test for the purpose of discovering tuberculosis to any cow whose milk is or was recently being supplied within the borough Provided that no such test shall be applied except with the previous consent of the owner of such cow.

(Execution of this section of Act by committee.)

(9) This section may be carried into execution by a committee of the council formed in accordance with and subject to the provisions of the Fourth Schedule to the Diseases of Animals Act 1894 except that the committee shall consist wholly of members of the council.

PART VII.

INFECTIOUS DISEASES.

Dairymen to furnish lists of customers in certain cases.

84. Whenever it shall be certified to the Corporation by the medical officer that the outbreak or spread of infectious disease is in the opinion of such medical officer attributable to the milk supplied by any dairyman the Corporation may require such

dairyman to furnish to them within a time to be fixed by them a full and complete list of the names and addresses of all his customers within the borough and such dairyman shall furnish such list accordingly and the Corporation shall pay to him for such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein but no such payment shall exceed three shillings and every person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

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85. Whenever it shall be certified to the Corporation by the medical officer that it is desirable with a view to prevent the spread of infectious disease that they should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Corporation may require such person to furnish to them a full and complete list of the names and addresses of the owners of clothes for whom such person washes or mangles or has washed or mangled during the past six weeks and such person shall furnish such list accordingly and the Corporation shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein but no such payment shall exceed three shillings and any person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Persons engaged in washing or mangling clothes to furnish lists of owners of clothes in certain cases.

86. If the medical officer shall have reasonable cause to believe that any person in the borough is suffering from infectious disease attributable to milk supplied within the borough he may by notice in writing require every dairyman supplying milk to the person so suffering or to the house of which he is an inmate to furnish the medical officer with a list of all the farms dairies or places from which such dairyman derives his supply of milk or from which he has derived his supply during the last six weeks and every such person failing to comply with such requirement shall for every such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Medical officer may require dairymen to furnish lists of sources of their supply of milk.

87. The Corporation may if they think fit provide or contract with any person to provide nurses for attendance on any person suffering from infectious disease within the borough and may charge a reasonable sum for the service of any nurse so provided or may subscribe to any institution for providing nurses for such cases.

Corporation may provide nurses.

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Byelaws
regulating
hospitals.

88. The Corporation may make byelaws for regulating the admission to and discharge of patients from any hospital for infectious disease (temporary or otherwise) provided by them and the conduct of patients therein and for preventing persons from entering such hospitals or the grounds thereof except with the consent of and subject to such conditions as may be imposed by the Corporation.

Compensa-
tion to
dairymen.

89. If any dairyman shall at the request of the Corporation stop his milk supply within the borough on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the borough the Corporation may make compensation to him for any loss occasioned by such stoppage and any such compensation may be paid out of the district fund or general district rate.

Protection
against
infection of
books in
public
libraries.

90. No person shall take out of any public library any book for use in any house in which there is any person suffering from any infectious disease and no person shall return to any public library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice that it has been exposed to infection to the inspector of nuisances and shall deliver up such book to him and such inspector shall cause the same to be disinfected and then returned to the librarian. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

For regulat-
ing manu-
facture and
sale of ice
creams &c.

91. Any person being a manufacturer of or merchant or dealer in ice creams or other similar commodity who within the borough—

(a) Causes or permits ice creams or any similar commodity to be manufactured sold or stored in any cellar or room in which there is an inlet or opening to a drain; or

(b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable for every such offence on summary conviction to a penalty not exceeding forty shillings.

92. Public notice of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulated in the borough and by a notice affixed outside the Town Hall of the borough and by such further means as the Corporation deem reasonable for conveying notice of the provisions of this Part of this Act to persons affected or likely to be affected thereby. A copy of the newspaper containing the advertisement shall be conclusive evidence that public notice of this Part of this Act has been duly given unless the contrary be proved and no objection to such notice shall be made after six months from the date of the advertisement.

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Public notice
to be given
of provisions
of this Part
of Act.

PART VIII.

COMMON LODGING-HOUSES.

93. The keeper of every common lodging-house shall reside constantly and shall remain between the hours of nine o'clock in the afternoon and six o'clock in the forenoon in such house and shall manage control and exercise proper supervision over the same and the inmates thereof except at such times as some other person appointed by him for that purpose and whose name is registered at the office of the Corporation shall with the approval of the Corporation in writing under the hand of their officer appointed for that purpose (which approval and registration shall be revocable by the Corporation) reside and remain in such house and manage control and exercise proper supervision over the same and the inmates thereof as the case may be. If any keeper of a common lodging-house offends against this enactment he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Regulations
as to common
lodging-
house
keepers.

94.—(1) Every common lodging-house whether registered before or after the passing of this Act shall to the satisfaction of the Corporation be provided with sufficient sanitary conveniences having regard to the number of lodgers who may be received in such common lodging-house and all waterclosets and urinals shall be provided with a proper water supply laid on for flushing purposes. Any keeper of a common lodging-house who shall make default for twenty-eight days in complying with a notice from the Corporation requiring him to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Sanitary con-
veniences to
be provided
for inmates
of common
lodging-
houses.

A.D. 1901.

(2) The expression "sanitary conveniences" in this section includes urinals waterclosets waste-water closets earth closets ashpits lavatories and any similar conveniences.

Penalties on
unregistered
common
lodging-
house
keepers.

95. Every person who without being registered in accordance with section 77 of the Public Health Act 1875 shall keep a common lodging-house within the borough shall be liable to the penalties imposed by section 86 of the said Act for the offences named therein.

Applications
for renewal
of registra-
tion.

96. Application for the renewal of the registration of every common lodging-house shall be made to the Corporation at or previous to the fifteenth day of May in every year and the Corporation notwithstanding the provisions of section 78 of the Public Health Act 1875 may refuse to register any house which they do not consider suitable for the purposes of a common lodging-house and the Corporation may refuse to register if they are satisfied that the person applying is not qualified to be the keeper of a common lodging-house. Any person aggrieved by such refusal may appeal to a petty sessional court held for the borough after the expiration of two clear days from such refusal provided he gives twenty-four hours' notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as they may think fit and award costs such costs to be recoverable in like manner as a penalty under this Act.

Notice to
common
lodging-
house
keepers.

97. Notice of the provisions of this Part of this Act shall be served upon the keeper of every common lodging-house either personally or by leaving the same at the common lodging-house.

PART IX.

POLICE PROVISIONS.

Notice of
procession
to be given.

98. Any person or persons intending to organise or form a circus procession or procession of wild animals through the streets of the borough shall give written notice thereof and the route proposed to be taken and of the time at which it will take place to the mayor by leaving such notice at the police station twenty-four hours at least (exclusive of Sundays) previous to the time fixed for such procession to pass through the streets. If any such procession passes through the streets of the borough without such notice having been previously given or otherwise than in accordance with such notice the person or persons organising or conducting such procession or any or either of them shall be liable to a penalty not exceeding five pounds each.

99.—(1) The captain or superintendent of the fire brigade acting under the authority of the Corporation or other officer of such fire brigade for the time being in charge of the engine or other apparatus for extinguishing fires attending at any fire shall from the time of his arrival and during his presence thereat have the sole charge and control of all operations for the putting out of such fire whether by the fire brigade of the Corporation or any other fire brigade including the fixing of the positions of fire-engines and apparatus the attaching of hose to any water pipes or water supply and the selection of the parts of the building on fire or of adjoining premises against which the water is to be directed.

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Captain of
fire brigade
to have
control of
operations.

(2) Such captain superintendent or other officer in charge shall have power to stop or regulate the traffic in any street whenever in his opinion it is necessary or desirable to stop or regulate such traffic for the purpose of extinguishing any fire or for the safety or protection of life or property.

100. Any police constable acting under the orders of his superintendent or inspector and any member of the fire brigade of the Corporation being on duty and any officer of the Corporation may enter and if necessary break into any building in the borough being or reasonably supposed to be on fire or any buildings or lands adjoining or near thereto without the consent of the owner or occupier thereof respectively and may do all such acts and things as he may deem necessary for extinguishing fire in any such building or for protecting the same or rescuing any person or property therein from fire.

Power to
police con-
stable &c. to
enter and
break open
premises in
case of fire.

PART X.

RECREATION GROUNDS.

101. The recreation grounds belonging to or under the control of the Corporation shall be deemed streets for the purposes of so much of section 28 of the Town Police Clauses Act 1847 as relates to the following offences:—

Recreation
grounds to
be deemed to
be streets for
police pur-
poses.

Every person who suffers to be at large any unmuzzled ferocious dog or urges any dog or other animal to attack worry or put in fear any person or animal;

Every person who rides or drives furiously any horse or carriage or drives furiously any cattle;

Every common prostitute or night-walker loitering and importuning passengers for the purpose of prostitution;

A.D. 1901.

- Every person who wilfully and indecently exposes his person ;
- Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language ;
- Every person who wantonly discharges any firearm or throws or discharges any stone or other missile or makes any bonfire or throws or sets fire to any firework ;
- Every person who throws or lays any dirt litter or ashes or night soil or any cartion fish offal or rubbish on any street.

Corporation
may let
pavilions &c.

102. The Corporation may let for any period not exceeding three years any pavilions or other buildings in recreation grounds belonging to them or under their control for meetings or entertainments and may make such charge for the use thereof and impose such conditions as they may think fit.

Corporation
may erect
buildings &c.

103. The Corporation may in any public park garden or recreation ground belonging to them or under their control and management erect maintain furnish and equip and may remove refreshment and reading rooms pavilions and other buildings and conveniences which may be required or convenient for the purposes of such park garden or recreation ground and the public resorting thereto and may charge for admission to such reading rooms pavilions and other buildings or conveniences or any of them or in respect of the use thereof or of any part or parts thereof respectively - Provided that the Corporation shall not charge for admission to such reading rooms on more than twelve days in any one year nor on more than four consecutive days on any one occasion.

Power to
provide
apparatus
for games.

104. The Corporation may provide swings and other apparatus for games and recreation in any public park garden and recreation ground within the borough and may charge for the use thereof and they may make regulations with respect to the use and the payment for the use of such swings or other apparatus.

Public bands.

105. The Corporation may pay or contribute out of the general district rate towards the payment of a public band or bands of music to perform in any public park garden or recreation ground or other place of public resort within the borough belonging to or held by the Corporation and the Corporation may inclose an area within which such band shall play and may make byelaws for regulating the time and place for the playing of the band and the payments to be made for admission within the said inclosure and for securing good

and orderly conduct during the playing of the band. Provided that the amount of such payment or contribution by the Corporation for or towards such band shall not in any one year exceed an amount which would be produced by a rate of one halfpenny in the pound on the assessable value of the borough to the general district rate. A.D. 1901.

106. The Corporation may place or authorise any person or persons to place seats or chairs for the use of the public in any street park recreation ground or pleasure ground or other public place and may if they think fit charge or allow such person or persons to charge reasonable sums for the use of the chairs and may make alter or repeal byelaws for regulating the use of seats and chairs and for preventing injury or damage thereto. Seats or chairs may be provided.

107.—(1) The Corporation may permit the use of the whole or set apart any part or parts of the recreation grounds for cricket football golf lawn tennis and other games and sports for gymnastics for the drill of any military or police force for concerts and other amusements and for any purposes tending to promote the health amusement instruction and enjoyment of the inhabitants of the borough and the public. Setting apart and closing of recreation grounds for games.

(2) The Corporation may when the recreation grounds or any part thereof are used or set apart as in this section mentioned close the same or such part thereof against the public for not exceeding twelve days in any one year nor four consecutive days on any one occasion and may during such respective periods demand and take or permit to be demanded and taken reasonable sums for the exclusive occupation of such recreation grounds or part thereof or for the admission of persons vehicles goods and things into such recreation grounds or part thereof so used or set apart and may exclude therefrom all persons vehicles goods and things unless payment be made of the reasonable sums demanded.

(3) The Corporation may also during times of frost for the purpose of protecting ice for skating on all or any part of any lake or piece of water in any park or recreation ground inclose such parts of such parks and places as may be necessary to effect such purpose and charge for admission to any part so inclosed. Provided that the portion of any such lake or piece of water which shall be inclosed and for admission to which a charge shall be made shall not exceed one-half of the whole area of such lake or piece of water.

108. The moneys (if any) received from the hire of chairs and the admission of any persons to any public park garden or Application of moneys received

A.D. 1901.
from admis-
sion to public
recreation
grounds &c.

recreation ground belonging to the Corporation or under their control and management or any pavilion or building or from the letting of any apparatus as herein-before mentioned shall after providing for the maintenance of such park garden and recreation ground or any of them be carried to the credit of the general district rate.

Power to
Corporation
to appoint
officers.

109. The Corporation may appoint officers for securing the observance of this Part of this Act and of the regulations and byelaws made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

PART XI.

ADVERTISEMENTS.

Regulations
as to sky
signs.

110. It shall not be lawful to erect or fix to upon or in connexion with any building or erection any sky sign and it shall not be lawful to retain any existing sky sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Corporation and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed. Provided that in any of the following cases a licence of the Corporation under this section shall become void (namely):—

- (1) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the surveyor;
- (2) If any change be made in the sky sign or any part thereof;
- (3) If the sky sign or any part thereof fall either through accident decay or any other cause;
- (4) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof;
- (5) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed:

Provided also that if any sky sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Corporation to take proceedings for the taking down and removal of the sky sign in the

same manner and with the same consequences as to the recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847. A.D. 1901.

Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

111.—(1) It shall not be lawful to use in any street any vehicle exclusively or principally for the purpose of displaying advertisements without the consent of the Corporation which consent shall be in writing and may be for such time and contain such terms and conditions as the Corporation think fit. Restriction
on advertis-
ing vehicles
and hoards.

(2) Every hoarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained.

(3) It shall not be lawful to erect any such hoarding or similar structure to be used either partly or wholly for advertising purposes to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding as the Corporation may determine.

(4) The owner or other person using any such hoarding wall or similar structure for advertising purposes whether erected before or after the commencement of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and if any papers affixed for advertising purposes to such hoarding wall or other structure fall away or become detached shall forthwith remove and clear away such papers.

(5) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(6) Any person aggrieved by the refusal of the Corporation to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after such refusal provided he give twenty-four hours' written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable in like manner as a penalty under this Act.

A.D. 1901.

PART XII.

THRIFT FUND.

Thrift fund.

112. The Corporation may establish in manner herein-after provided a fund for the encouragement of thrift and with a view of providing a sum of money which in the event of retirement discharge or death of any person in the service of the Corporation who has contributed to the fund shall be available for himself or his representative such fund to be called "the thrift fund."

The Corporation may prepare and approve by resolution a scheme or schemes for the establishment of the thrift fund and may determine in and by any such scheme the following matters and things or any of them (that is to say) :—

- (a) What classes of persons shall be entitled to contribute to and participate in the benefit of the thrift fund and to what extent such contribution shall be payable by persons entering or who shall have entered the service of the Corporation after the passing of this Act and also upon what terms and conditions persons in the service of the Corporation at the passing of this Act shall on their own application be admitted to the benefit of the thrift fund :
- (b) The division of the persons contributing to and to be benefited by the thrift fund into two or more classes according to the amount of salary or according to such other conditions as the Corporation shall determine power being reserved by the scheme to remove any contributor from the one class to the other Provided that no such removal shall place the contributor or his representatives in a worse position than he would have occupied if the removal had not been made :
- (c) What (if anything) shall disqualify any person in the employ of the Corporation from becoming a contributor to the thrift fund and participating in the benefits thereof :
- (d) Under what circumstances any person having been a contributor to the thrift fund shall cease to continue a contributor and to be entitled to participate in the benefits thereof :
- (e) What proportion (if any) of his own contributions to the thrift fund and of the interest which shall have accrued thereon under the scheme any person having been but ceasing to be a contributor thereto shall be entitled to receive :
- (f) What proportion (if any) of the additions made by the Corporation to the thrift fund in respect of the contributions of any member shall be payable to the representatives of such member

in the event of his dying before he become entitled to any benefit under the scheme on resignation or retirement :

- (g) The percentage or proportion not exceeding without the consent of the Secretary of State three pounds fifteen shillings per centum of their salaries or wages which shall be payable to the thrift fund by the contributors :
- (h) The age at which or other circumstances in which a person shall become entitled to benefit under any scheme so that no person not incapacitated by illness shall be entitled to benefit (except by way of return of his own contribution with interest under the next succeeding section of this Act) at a less age than sixty :
- (i) The payment to a person entitled to benefit under any scheme either by way of a gross sum or by way of an annuity instead of such gross sum calculated at such rate of interest as may be defined by the scheme :
- (j) The rate not exceeding four pounds per centum at which interest whether simple or compound shall be calculated in respect of the moneys contributed to the thrift fund by the contributors and by the Corporation respectively :
- (k) The future management and direction of the thrift fund and the number of and mode of appointment of the committee for administering and managing the same and the powers to be conferred upon the committee with respect to such administration and management and whether any and if so what persons other than members of the Corporation should form part of or be associated with the said committee for the purposes of the administration and management of the thrift fund or form a separate consultative committee to be elected by the contributors to the thrift fund and to define the functions and mode of election of such consultative committee :
- (l) The securities upon which the moneys received on account of the thrift fund shall from time to time be invested :
- (m) And generally all such other matters and things in relation to the thrift fund as the Corporation shall deem fit and proper to form part of and be included in such scheme.

113. Any scheme under this Part of this Act shall contain the following provisions :—

- (1) Any contributing member retiring bonâ fide from the service of the Corporation of his own accord before attaining the age prescribed by the scheme (and not to escape dismissal for fraud dishonesty or misconduct involving pecuniary loss to

Forfeiture of rights under scheme in certain cases.

A.D. 1901.

the Corporation) shall be entitled to receive back the whole amount of his own contributions with such interest as shall have accrued thereon under the scheme and shall have no further claim upon the thrift fund :

(2) The representatives of any contributing member who not having been guilty of fraud dishonesty or misconduct involving pecuniary loss to the Corporation shall die before he becomes entitled to any benefit under the scheme or (having become so entitled) before he shall have received back a sum equal to his whole contributions and the interest accrued thereon on resignation or retirement shall be entitled to receive back the whole or (as the case may be) such part of the contributions of such member and of the equivalent contributions made by the Corporation as he shall not have so received back with such interest as shall have accrued thereon under the scheme and shall have no further claim upon the thrift fund except as provided by the scheme :

(3) Any contributing member dismissed from the service of the Corporation for fraud or dishonesty or for misconduct involving pecuniary loss to the Corporation or retiring to escape dismissal for any of these causes shall at the discretion of the Corporation forfeit all or any part of his contributions and the interest thereon and lose all benefits from the thrift fund except such return (if any) as may at such discretion be made to him out of his own contributions and the interest thereon :

(4) Any contributing member who shall become entitled to superannuation or shall be required to retire in consequence of any reduction of the number of persons in the service of the Corporation shall be entitled to payment as follows If by way of gross sum the total amount of the contributions made by him to the funds and of the equivalent contributions made by the Corporation with interest thereon and if by way of an annuity such an amount as shall be determined by actuarial calculation to be of equal value to such gross sum as aforesaid.

Copies of
scheme to be
supplied.

114. The Corporation shall supply a copy of any scheme in force under this Part of this Act at a price not exceeding sixpence to any person in the employ of the Corporation interested in the thrift fund or the representatives of any such officer or servant in case of death and shall supply gratuitously to every officer or servant or other person having an interest in the thrift fund a copy of the last annual balance sheet of the same for the time being.

115.—(1) The Corporation shall at the end of each and every half year after the establishment of the thrift fund contribute thereto out of the rate or revenue upon which the salary or wages of each contributing member is or are respectively chargeable a sum equal to one-third of the sum which during the same half year has been contributed thereto by such contributing member.

A.D. 1901.

Corporation
to contribute
to fund.

(2) In the event of the moneys standing to the credit of the thrift fund being at any time inadequate for the payment to contributing members of the sums to which they will be entitled under the provisions of the scheme the amount of any deficiency shall from time to time be made good by the Corporation out of the rate or revenue upon which the wages and salaries of the contributing members are respectively chargeable.

(3) The Corporation may also pay out of the general district rate any salaries costs and expenses of the management and administration of the thrift fund and of and incidental to investments.

116. Prior to the scheme coming into operation it shall be submitted by the Corporation to an actuary being a Fellow either of the Institute of Actuaries of Great Britain and Ireland or of the Faculty of Actuaries in Scotland to be appointed by the council with the approval of a Secretary of State who shall consider such scheme and shall report thereon as to its solvency or otherwise. In the event of such actuary reporting that in his opinion the scheme as a whole is a solvent one without recourse to the guarantee of the Corporation the scheme may come into operation but not otherwise.

Scheme to be
submitted to
actuary.

Once in every five years after the commencement of the scheme it shall be submitted to an actuary to be appointed as aforesaid for revision (if necessary) and in the event of such actuary recommending any modifications alterations or amendments therein such modifications alterations or amendments shall if approved by a Secretary of State be forthwith adopted by the Corporation. If upon such actuary's recommendations the Corporation are satisfied that any addition (specified by him) may be made to all annuities payable within the following period of five years without risk that a deficiency in the funds may at any future time be thereby caused they may direct such addition to be made in all annuities for such period.

There shall be paid to such actuaries such reasonable remuneration as may be agreed or as may be fixed by a Secretary of State.

A.D. 1901.

Contracts
with
assurance
company.

117. It shall be lawful for the Corporation from time to time to enter into and carry into effect any contract with any company carrying on the business of life assurance for the undertaking by such company of the liabilities of the Corporation under any scheme or schemes made under this Part of this Act or any of them.

Certain
provisions of
Provident
Nominations
and Small
Intestacies
Act 1883
made applic-
able.

118. The provisions of sections 7 to 10 of the Provident Nominations and Small Intestacies Act 1883 shall (so far as applicable) extend and apply to the thrift fund and to the contributors thereto and to the Corporation as if the thrift fund were the funds of a registered trade union and the contributors to the thrift fund were members of a registered trade union and the Corporation were directors within the meaning of that Act.

Corporation
not to regard
trusts or
assignments.

119. The Corporation shall not be bound to recognise or see to the execution of any assignment or of any trust (whether express implied or constructive) relating to any contributions of any contributing member to the thrift fund or the interest thereon or additions thereto but the receipt of the contributing member for the same or (if he is dead) of the legal personal representatives or the person or persons to whom the same may be paid under the authority of this Act shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any assignment thereof or any trust to which the same may be subject and whether or not the Corporation have had notice (express implied or constructive) of any such assignment or trust or of any charge or incumbrance upon any such contributions or the interest thereon or additions thereto or any part thereof respectively and the Corporation shall not be bound to see to the application of any money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application thereof.

Application of
provisions
of Friendly
Societies Act
1896.

120. Any scheme for the establishment of a superannuation or provident fund under this Part of this Act shall not come into operation until the Corporation shall in respect of that fund have been registered under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this Part of this Act shall apply as if (a) the Corporation were a society to which that Act applies and were the trustees of such society (b) as if the scheme were the rules of such society (c) as if the superannuation or provident funds were the funds of such society and (d) as if the contributors to the fund were the members of such society.

PART XIII.

A.D. 1901.

MISCELLANEOUS.

121. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 is hereby incorporated with this Act. Protection of local authority.

122. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted. Damages and charges in case of dispute to be settled by justices.

123. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts. Compensation how to be determined.

124. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder or of the Town Police Clauses Acts 1847 and 1889 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any superintendent of police acting for or within the borough. Informations by whom to be laid.

125. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may unless any other mode of appeal is provided for under this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal. As to appeal.

126. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such Recovery of penalties &c.

A.D. 1901. — as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Penalties to be paid over to treasurer &c.

127. All penalties recovered on the prosecution of the Corporation under this Act or under any byelaw thereunder shall be paid to the treasurer and be by him as to penalties in connexion with sanitary matters carried to the credit of the district fund as to penalties in connexion with municipal matters to the credit of the borough fund and in connexion with other matters to such fund as the Corporation may direct.

Authentication and service of notices &c.

128. In the case of any notice or demand under this Act requiring authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Notices orders and any other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section two hundred and sixty-seven of that Act authorised to be served. Provided always that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

General provisions as to byelaws.

129. All the provisions with respect to byelaws contained in sections 182 to 185 of the Public Health Act 1875 (except so much thereof as relates to byelaws of a rural sanitary authority) shall unless by this Act otherwise provided apply to all byelaws from time to time made by the Corporation under the powers of this Act except byelaws made under Parts II and III of this Act.

Powers of Act cumulative.

130. All powers given to the Corporation by this Act shall be deemed to be in addition to and not in derogation of any other powers conferred on them by the Public Health Act 1875 and the Municipal Corporations Act 1882 or other Act amending the same respectively and such other powers may be exercised in the same manner as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Judges not disqualified.

131. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate or any gas rate rent or charge payable to the Corporation.

Saving for indictments &c.

132. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings nor shall

relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that no person shall be punished twice for the same offence. A.D. 1901.

133.—(1) The Corporation may if they think fit grant a gratuity of any sum (not exceeding six months' pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service. Power to grant gratuities in certain cases.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on which the salary wages or emoluments of such officer or servant shall have been charged or paid if he had continued in his office or service.

134. The Corporation may appoint more than one inspector of nuisances and section 189 of the Public Health Act 1875 shall for the purposes of the execution of that Act within the borough be construed accordingly. Power to appoint more than one inspector of nuisances.

135. The Corporation may provide and maintain ambulance vans for use in case of accidents within the borough and they may employ officers in connexion therewith and they may make such charges for the use of the said vans and for assistance rendered by such officers as they may think fit and the expense of providing and maintaining such ambulance vans and the employment of officers in connexion therewith shall be chargeable on the general district rate. Corporation may provide &c. ambulance vans.

136. The Corporation may close to the public and reserve the exclusive use of any swimming bath belonging to them and may grant the use thereof to any company body or persons either gratuitously or for payment for swimming contests practices or exhibitions of aquatic exercises and may demand and take such sums for the exclusive use of such baths or for the admission of persons thereto as they may think fit. Provided that no such swimming bath shall be closed under the powers of this section for more than six hours on any one day or on more than one day in any one week. Power to close baths and charge for exclusive use thereof.

137. Without prejudice to any existing right of His Majesty there shall be exempted from the provisions of this Act every building structure or work vested in or in the occupation of His Majesty either beneficially or as part of the hereditary revenues of the Crown or in trust for the public service or for public services Exemption of Government property from building regulations.

A.D. 1901. — also any building structure or work vested in or in the occupation of any department of His Majesty's Government for public purposes or for the public service.

PART XIV.

FINANCE.

Borrowing powers.

138. The Corporation may from time to time independently of any other statutory borrowing power borrow at interest on the security of the revenues of the Corporation for the purposes herein-after mentioned the sums of money following (that is to say) :—

- (a) For the purposes of the gas undertaking the sum of eighty-nine thousand pounds ;
- (b) For tramway purposes such sum as they may require not exceeding the sum of fifty thousand pounds ;
- (c) For paying the expenses of this Act as herein-after provided the sum requisite for that purpose :

And they may also with the consent of the Local Government Board borrow for any of the purposes of this Act other than for tramway purposes such further sum or sums as they may require on the security of the district fund and general district rate and they may borrow such further sums for tramway purposes as the Board of Trade may sanction :

Provided always that the revenues of the Corporation shall not in respect of the moneys borrowed for the purposes of the gas undertaking be deemed to include the borough fund and borough rate.

Certain regulations of Public Health Act 1875 as to borrowing not to apply.

139. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Mode of raising money.

140. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

141. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say):—

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—
Periods for
repayment
of money
borrowed.

As to money borrowed for the purposes of the gas undertaking within any period not exceeding forty years from the date or dates of the borrowing of the same;

As to money borrowed for tramway purposes within any period not exceeding thirty years from the date or dates of the borrowing of the same;

As to money borrowed for payment of the costs and expenses of this Act within five years from the date or dates of the borrowing of the same;

As to money borrowed with the consent of the Local Government Board or the Board of Trade within such period as the Board sanctioning the same may prescribe.

142. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made.

Mode of
payment of
of money
borrowed.

143.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

Sinking
fund.

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in

A.D. 1901. — respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided always that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund. A.D. 1901.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

144. The proceeds of the sale of any surplus lands of the Corporation under the powers of this Act and the fines and premiums on any leases granted by the Corporation under this Act shall be distinguished as capital in the accounts of the Corporation and shall be applied in discharge of moneys borrowed by the Corporation and any money so discharged shall not be re-borrowed. Provided that such proceeds when used to pay off borrowed moneys shall not be applicable to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Proceeds of sale of surplus lands to be treated as capital.

145. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Protection of lender from inquiry.

A.D. 1901.

Corporation
not to regard
trusts.

146. The Corporation shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them under this Act or any previous Act or order relating to the borough may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or any interest thereon not entered in their register.

Appointment
of receiver.

147. The mortgagees of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

148. If the Corporation pay off any moneys borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of the proceeds of the sale of land or other property or out of fines or premiums on leases or out of other moneys received on capital account not being borrowed moneys they may re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Corporation with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing.

Scheme
for fixing
equated
periods.

149.—(1) The Corporation may at any time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full

force and effect and such scheme shall be deemed to be within the powers of this Act. Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any Corporation stock existing at that time except with the consent of such mortgagee or holder. A.D. 1901.

(3) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

150.—(1) The town clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of such town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. Return
respecting
sinking fund
to Local
Government
Board.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or

A.D. 1901. — sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Application
of revenue of
tramway
undertaking
and de-
ficiency of
receipts.

151.—(1) The Corporation shall apply all money received by them on account of revenue in respect of their tramway undertaking in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking (including the maintenance of so much of the roads in which the tramways are laid as is required to be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870);

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the undertaking;

Thirdly In providing the requisite appropriations instalments or sinking fund payments for the purposes of the undertaking;

Fourthly In extending and improving (if the Corporation think fit) any works for the purposes of the undertaking;

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the tramways of the Corporation or of the works connected therewith and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the

reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum : A.D. 1901.

And the Corporation shall carry to the borough fund so much of any balance remaining in any year of the income of their tramway undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the tramway undertaking of the Corporation shall be forthwith made good out of the borough fund.

152.—(1) The Corporation shall keep the accounts in respect of their tramway undertaking separate from all their other accounts distinguishing therein capital from revenue. Separate accounts to be kept and audited.

(2) The accounts of the receipts and expenditure of the Corporation under this Act shall be audited examined and published in like manner and with the same consequences as the other accounts of the Corporation are audited examined and published under the Municipal Corporations Act 1882.

153. The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Incorporated Society of Accountants to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in addition to the auditors appointed under the Municipal Corporation Acts. Appointment of auditors.

154. All money borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable. Application of money borrowed.

155. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the borough fund and rate or other funds or revenue as the Corporation may in their discretion having regard to the object of the expenditure deem just. Expenses of execution of Act.

156. Where the Corporation have power under this Act or any other Act passed or to be passed to mortgage or charge as security for the repayment of money borrowed by the Corporation any of their rates or revenues they may if they think fit include in such mortgage or charge the lands estates undertakings or other property for the time being of the Corporation from which such revenue is Power to include lands &c. in mortgages.

A.D. 1901. derived and all or any other property of the Corporation and the same shall be charged accordingly with the payment of the borrowed money and the interest thereon. Provided that such provision shall not prejudicially affect the rights of any existing mortgagee of the Corporation who shall have the same rights and remedies as if this Act had not been passed.

Inquiries
by Local
Government
Board.

157.---(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary for giving effect to any of the provisions of this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Costs of Act.

158. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation partly out of the borough fund and partly out of the general district fund or out of moneys to be borrowed under this Act.

The SCHEDULE referred to in the foregoing Act.

A.D. 1901.

RATES FOR ANIMALS AND GOODS.

Animals.

Per mile.
s. d.

For every horse mule or other beast of draught or burden -	-	0	6
For every ox cow bull or head of cattle -	-	0	6
For calves pigs sheep and small animals per head -	-	0	3

Goods and Minerals.

For all coal culm cannel limestone chalk lime slates clay ironstone undressed or scabbled stones for building pitching and paving slag stone salt sand cinders and all undressed materials for the repair of public roads - - - - - per ton 0 3

For all iron pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron wrought iron not otherwise specially classed herein and for all timber or wood - per ton 0 3

For heavy iron castings (including railway chairs) tiles bricks coke charcoal dung manure and compost - - - per ton 0 4

For all sugar grain corn flour hides dyewoods earthenware staves deals and metals (except iron) nails anvils vices and chains and for light iron castings - - - - - per ton 0 5

For all cotton and other wools drugs manufactured goods and all other wares merchandise fish articles matters or things - per ton 0 6

For every carriage of whatever description having two wheels - 1 0

For every carriage of whatever description having four wheels - 1 6

Small Parcels.

Any distance.
s. d.

For any parcel not exceeding 7 lbs. in weight -	-	0	3
For any parcel exceeding 7 lbs. and not exceeding 14 lbs. in weight -	-	0	5
For any parcel exceeding 14 lbs. and not exceeding 28 lbs. in weight -	-	0	7
For any parcel exceeding 28 lbs. and not exceeding 56 lbs. in weight -	-	0	9

For any parcel exceeding 56 lbs. such sum as the Corporation may think fit :

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

A.D. 1901.

For the Carriage of Single Articles of great Weight.

Per mile.
s. d.

For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage shall exceed four tons but shall not exceed eight tons such sum as the Corporation may think fit not exceeding - - - - - per ton 3 0

For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage shall exceed eight tons such sum as the Corporation may think fit.

Regulations as to Rates.

For articles or animals conveyed on the tramways for a less distance than three miles the Corporation may demand rates and charges as for three miles ;
A fraction of a mile beyond an integral number of miles shall be deemed a mile ;

For the fraction of a ton the Corporation may demand rates according to the number of quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton ;

With respect to all articles except stone and timber the weight shall be determined according to Imperial avoirdupois weight ;

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and 50 cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

In addition to the foregoing rates the Corporation may demand such charges as are reasonable for loading and unloading the animals and goods and if any difference shall arise as to the reasonableness of any such charge the matter in difference shall be settled by the Board of Trade.

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